OSSIPEE PLANNING BOARD
Meeting Minutes
March 3, 2026

Minutes have been recorded for the convenience of summarization by Laura Nash, Boards & Commissions Secretary and recordings are retained; any amendments to the minutes are noted in ***bold & italic*** type.

Call to Order: Chairman Fischbein called the Public Hearing to order at 7:00 pm.

Pledge of Allegiance: Was recited by all in attendance.

Roll Call: Ash Fischbein, , Kyle Copeland (Selectmen's Ex-Officio), David Doyle, Michael Durant, Bruce Stuart (Alternate) and Jonathan Smith, ZEO

Absent: Katherine Alexander and Sharon "Sharie" Cohen

Public Input: Unrelated to any case being presented tonight.

Dallas Emery spoke on Meet the Candidates Night held on March 2, 2026, where after watching it on governmentoversite.com it seemed that most of the attendees did not understand what the new zoning ordinance changes are or mean. Emery stated some of the changes are because of state law changes and the Town has no choice but to adopt them. Other changes make things easier than current requirements.

Emery wanted to bring this up people in the room were told something different without ever coming to a zoning meeting or asking the people experienced in this topic. Some changes are state law and others are lessening the restrictions. So, being told to vote no on all the proposed changes is irresponsible of that person especially when they NEVER attend any of the planning or zoning meetings or public hearings.

Chairman Fischbein noted that are a couple of definitions being clarified to make things easier in the zoning ordinance and also to not create gray areas. Because prior definitions were created based on loose interpretation of a definition, so some of the changes clarifies definition. We're also adding NFPA's into the ordinances because we want to be transparent. We also have state RSA's that we incorporate in order again to be transparent. Chairman Fischbein stated he's been on the Board for 6 years and can honestly state that NONE of them have every come to a meeting or public hearing.

Stuart commended Chairman Fischbein and Jonathan Smith who spent extra time explaining each of the changes in depth to the two people who did show up for the public hearing, next time maybe we'll have more show up.

Susan McGuire-Doyle noted all the changes and explanations are on the Town website, or you can call and speak to someone at the fire station, and the information is out there.

Copeland stated one of his goals for next year as a Selectmen because in past years wasn't quite sure what we were voting on because there is not a lot of information out there. Copeland suggest that the Selectmen could do a better job in getting a breakdown in more layman's terms to be disseminated more to the public than just the website. Copeland suggested maybe having a Town Facebook page in order to get more information out there because if you don't know the truth you start believing the rumor mills.

Emery commented that the Board has been very open about the changes and the meetings have explained the changes very well. Jonanthan Smith stated he has explained the changes in the Selectmen's meetings on camera for the world to see and at the Planning Board public hearings. The information is out there but there are people who refuse to listen.

Chairman Fischbein noted just by watching what does take place; having another Ossipee Facebook page would be a terrible idea. He has never seen such derision and division in his life and Facebook is a cesspool of a lot of it. It's pert point because it could be used in such a good way. It's not up to the Board to spoon feed people who are not willing to do their own do diligence and educate themselves on the changes that might affect themselves.

Susan McGuire-Doyle suggested posting the changes on the walls around the gym on lection day.

Meeting Minutes: Review to approve Meeting Minutes of February 3, 2026

A **Motion** by Fischbein to approve the meeting minutes of February 3, 2026 as submitted. Doyle seconded. No discussion. A unanimous vote was taken by those in attendance. **Motion passed.**

Informal Discussion: N/A

Unfinished Business:

- **Case #26-01-SPRA:** Rockin' Fitness, LLC c/o Rowell Services - Rep. Agent: Elwood McLLarky for 2400 Route 16, Tax Map: 007 Lot: 011 received a Conditional Site Plan Review Amendment. (Case continued from 02/17/2026). Pending: Fire Departments Letter of Approval – Received 02/19/2026

The Board reviewed the Fire Chief's letter.

Chairman Fischbein called for Public Input. None was heard.

A **Motion** by Fischbein for **Case #26-01-SPRA:** Rockin' Fitness, LLC c/o Rowell Services - Rep. Agent: Elwood McLLarky for 2400 Route 16, Tax Map: 007 Lot: 011 is Granted Final Approval for a Site Plan Review Amendment to use the garage space for fitness area, pickle ball courts, boxing and sports events center, provided All Federal, State and Local Regulations, Ordinances and Permitting Processes shall be followed. Copeland seconded. No discussion. A unanimous vote was taken by those in attendance. **Motion passed.**

Chairman Fischbein informed the applicant that there is a 30 day Appeal Period as follows: ***Please Note: The Selectmen, any party to the action or any person directly affected has a right to appeal this decision within 30 days. To avoid lapsing of the approval, there should be substantial construction or liability within 2 years of the decision. See New Hampshire Revised Statutes Annotated, Chapter 677, available at the Ossipee Town Hall.***

- **Case #26-02-SPRA**: Frederick Mauer c/o MH Enterprises, LLC for 674 Route 16 (formerly Ossipee House of Pizza) Tax Map: 259 Lot: 010 is seeking a Site Plan Review Amendment for a change in use from three units with retail, residential and a restaurant and converted to a single unit building with retail occupancy of a Beer, Wine and Tobacco Shop. (Case continued from 02/17/2026) Pending: Fire Departments Letter of Approval – Received 02/24/2026

The Board reviewed the Fire Chief's letter.

Chairman Fischbein called for Public Input. None was heard.

A **Motion** by Fischbein for **Case #26-02-SPRA**: Frederick Mauer c/o MH Enterprises, LLC for 674 Route 16 (formerly Ossipee House of Pizza) Tax Map: 259 Lot: 010 is Granted Final Approval for a Site Plan Review Amendment for a change in use from three units with retail, residential and a restaurant and converted to a single unit building with retail occupancy of a Beer, Wine and Tobacco Shop provided All Federal, State and Local Regulations, Ordinances and Permitting shall be followed. Durant seconded. No discussion. A unanimous vote was taken by those in attendance. **Motion passed.**

Chairman Fischbein informed the applicant that there is a 30 day Appeal Period as follows: ***Please Note: The Selectmen, any party to the action or any person directly affected has a right to appeal this decision within 30 days. To avoid lapsing of the approval, there should be substantial construction or liability within 2 years of the decision. See New Hampshire Revised Statutes Annotated, Chapter 677, available at the Ossipee Town Hall.***

- **Case #26-02-SPR**: Josh Kaake c/o Generational Development 485 Route 16. Owner: Laura Cammett c/o Laura Paige for 485 Route 16, Tax Map: 266 Lot: 015 is seeking Site Plan Review Minor to convert a 2-story mixed use building into all residential by adding 4 additional apartments for a total of 9 units, keeping the existing parking area and providing on-site storage for the tenants. (Case continued from 02/17/2026).
  - Pending: Deed of ownership – Received 03/03/2026
  - Pending: Application completed & signed by owner - Received 03/03/2026
  - Pending: Fire Departments Letter of Approval – Received 02/17/2026

The Board reviewed the Fire Chief's letter, Application completed & signed by owner and the deed. Board discussion included if the septic system was efficient to handle the additional bedrooms. Josh Kaake stated that Laura Cammett is ready to retire and has agreed to sell to him. Josh Kaake is looking to convert the downstairs retail space into 4 residential units for a total of (9) apartments.

Stuart inquired if the existing septic goes with the NHDES approval. Josh Kaake noted the old septic remains and when the ground thaws it's the first thing being replaced. The NHDES approval letter from 02/12/2024 approves the septic for (4) two bedrooms and (1) three bedroom but not the additional (5) bedrooms. Josh Kaake stated per his conversation with NHDES the septic is approved for 11 bedrooms.

The deed raised questions that the boundaries are within 200 ft. setback to the rail line. Josh Kaake explained the proximity of the rail line to the boundaries is nowhere close to 200 ft. Josh Kaake noted that Carrie Hurn owns the largest amount of property that abuts us. Josh Kaake stated that Carrie Hurn had at some point subdivided and sold off some of the previously owned the 70+ acre property leaving 15.8 acres with the primary lot.

Durant inquired about the renters currently living there. Josh Kaake state they will be staying there until he gets the other units built and they will have first opportunity to move to a newer unit.

Josh Kaake noted that the basement is for on-sight locker storage for the tenants, so there will be no additional buildings outside for storage.

Stuart clarified that if the Board approves the SPR it will be under Laura Cammett's name until she sells the property to Josh Kaake.

A **Motion** by Copeland to accept the application as complete. Chairman Fischbein noted that they have to approve the waiver requests first.

Waiver Requests:

1. **Section 6.04.4 I – 1:** Copy of any required Zoning Board or Water District approvals.

A **Motion** by Fischbein to accept the waiver request for **Section 6.04.4 I-1**: Copy of any required Zoning Board or Water District approvals. Doyle seconded. No discussion. A unanimous vote was taken by those in attendance. **Motion passed**.

2. **Section 6.04.4 H 9**: Storm water drainage

A **Motion** by Fischbein to accept the waiver request for **Section 6.04.4 H 9**: Storm water drainage. Copeland seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed.**

3. **Section 6.04.4 H 15**: Erosion controls and Sediment controls

A **Motion** by Fischbein to accept the waiver request for **Section 6.04.4 H 15**: Erosion and sediment controls. Doyle seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed.**

4. **Section 8.01.2 B**: Curb cut for state road, required from NHDOT

A **Motion** by Fischbein to accept the waiver request for **Section 8.01.2 B:** Curb cut for state road, required from NHDOT. Copeland seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

5. **Section 8.01.3 B**: Town road access, to ensure safe access to highway

A **Motion** by Fischbein to accept the waiver request for **Section 8.01.3 B**: Town road access, to ensure safe access to highway. Doyle seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

6. **Section 8.03.1 A**: Ossipee Water and Sewer Supervisor approval

A **Motion** by Fischbein to accept the waiver request for **Section 8.03.1 A**: Ossipee Water and Sewer Supervisor approval. Durant seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed.**

7. **Section 8.03.2 A**: Groundwater protection

A **Motion** by Fischbein to accept the waiver request for **Section 8.03.2 A**: Groundwater protection. Copeland seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

8. **Section 8.03.3 & 8.03.7**: Pollution controls

A **Motion** by Fischbein to accept the waiver request for **Section 8.03.3 & Section 8.03.7**: Pollution controls. Doyle seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

A **Motion** by Copeland to accept the application as complete for **Case #26-02-SPR**: Josh Kaake c/o Generational Development 485 Route 16. Owner: Laura Cammett c/o Laura Paige for 485 Route 16, Tax Map: 266 Lot: 015 request for a Site Plan Review. Fischbein seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

Chairman Fischbein called for Public Input:

Dallas Emery thanked Josh Kaake for his efforts towards revitalizing the building because it needs it and help with increasing the housing opportunities for the residents of Ossipee.

Chairman Fischbein closed public input.

A brief discussion about septic approval was needed before approving this case. Stuart confirmed that Josh Kaake is all set because he's approved for 11 bedrooms. Jonathan Smith noted he will only need operational approval prior to using that part of the building.

A **Motion** by Fischbein for **Case #26-02-SPR**: Josh Kaake c/o Generational Development 485 Route 16. Owner: Laura Cammett c/o Laura Paige for 485 Route 16, Tax Map: 266 Lot: 015 is Granted Final Approval

for a Site Plan Review to convert a 2-story mixed use building into all residential by adding 4 additional apartments for a total of 9 units, keeping the existing parking area and providing on-site storage for the tenants provided All Federal, State and Local Regulations, Ordinances and Permitting Processes shall be followed. Copeland seconded. No discussion. A unanimous vote was taken by those in attendance. **Motion passed.**

Chairman Fischbein informed the applicant that there is a 30 day Appeal Period as follows: ***Please Note: The Selectmen, any party to the action or any person directly affected has a right to appeal this decision within 30 days. To avoid lapsing of the approval, there should be substantial construction or liability within 2 years of the decision. See New Hampshire Revised Statutes Annotated, Chapter 677, available at the Ossipee Town Hall.***

New Business:

- **Case #26-01-BLA**: Deborah A. Bemis & Gregory C. Bemis c/o Kevin Ashe, LLS of Verdantas for 185 Dorrs Corner Rd. Tax Map: 231 Lots: 027, 027-001 & 027.002 is requesting three minor Boundary Line Adjustments of a previously approved four-lot subdivision in 2023.

Frank McMann of Verdantas presented the plans for a three (3) lot boundary line adjustment. The plan is to adjust the boundary lines that separate Tax Map: 231 Lot: 27.1 and Tax Map: 231 Lot: 27.2 from Tax Map: 231 Lot: 27.0. As a result of the adjustments, Lot: 27.1 (Lot 1) from 5.00 acres to 3.64 acres and will continue to have 234.85 ft of frontage on Dorrs Corner Road. Lot: 27.2 (Lot 2) will be reduced in size from 4.80 acres to 3.45 acres and its frontage on Dorrs Corner Road will be reduced from 234.90 ft to 210.75 ft. Lot: 27.0 (Lot 3) containing the existing structure, will increase in size from 10.39 acres to 13.09 acres and its frontage on Dorrs Corner Road will increase from 503.74 ft. to 527.89 feet.

Since Lots 1 and 2 will have an area of 5 acres or less, state subdivision approval is required and is currently being prepared and submitted concurrently with the Town application. The plan shows wells on all lots, shows the 4,000 sq. ft. areas on the lots 1 and 2 pending subdivision approval. Test pits were done and the reports were included with the application. All lots comply with the 200 ft. frontage requirements and all lots are well above lot load requirements.

Frank McMann read the reasons for the waivers requested. No HISS mapping was done because the tests pits agreed with the NRCS Rules. Survey control is done with monuments around the corners. Setting the monuments will be completed soon but the final monuments have not been set.

Stuart inquired if the driveway easement on Lot: 27.1 has been built. Frank McMann noted it has not been built but the monuments were previously set.

The secretary retrieved the prior subdivision file for the Board to review if the fire chief's letter noted that the driveway easement to Lot: 27.1 was adequate. Discussion ensued over the dimensions of the driveway from 225 ft. to 219 feet. The Fire Chief's letter from the previous subdivision case file was located, reviewed and since it addressed the driveway easement, it was acceptable to the Board.

Chairman Fischbein called for public input. None was heard.

Chairman Fischbein moved on to the following Waiver Requests:

1. **Section 8.01 P & Section 9.06 B:** Copy of required Zoning Board or Municipal Water District approvals;

A **Motion** by Fischbein to accept the waiver request for **Section 8.01 P & Section 9.06 B:** Copy of required Zoning Board or Municipal Water District approvals. Copeland seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

2. **Section 8.02.3**: **Subdivision Utility Plan** - Five (5) copies of a subdivision utility plan shall be submitted as part of the final plan submission.

A **Motion** by Fischbein for waiver request for **Section 8.02.3**: **Subdivision Utility Plan** - Five (5) copies of a subdivision utility plan shall be submitted as part of the final plan submission. Doyle seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

3. **Section 9.06 M:** A written statement by Ossipee Fire Department's assessing or evaluating, and describing fire protection facilities and hazards if any, of the proposed subdivision.

A **Motion** by Fischbein to accept the waiver request for **Section 9.06 M:** A written statement by Ossipee Fire Department's assessing or evaluating, and describing fire protection facilities and hazards if any, of the proposed subdivision. Doyle seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

4. **Section 9.04 (D) and Section 8.02.2**: Road Design and Curb cut state road–required by NHDOT

A **Motion** by Fischbein to accept the waiver request for **Section 9.04 (D) and Section 8.02.2**: Curb cut state road–required by NHDOT. Copeland seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

5. **Section 10.03 (A-C):** Open Space, green space, public space;

A **Motion** by Fischbein for waiver request for **Section 10.03 (A-C):** Open Space, green space, public space. Doyle seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

A **Motion** By Fischbein to accept the application as complete for **Case #26-01-BLA**: Deborah A. Bemis & Gregory C. Bemis c/o Kevin Ashe, LLS of Verdantas for 185 Dorrs Corner Rd. Tax Map: 231 Lots: 027, 027-001 & 027.002 request for a three lot Boundary Line Adjustment. Copeland seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

Chairman Fischbein called for public input. None was heard.

A **Motion** by Fischbein for **Case #26-01-BLA**: Deborah A. Bemis & Gregory C. Bemis c/o Kevin Ashe, LLS of Verdantas for 185 Dorrs Corner Rd. Tax Map: 231 Lots: 027, 027-001 & 027.002 is Granted a three lot minor Boundary Line Adjustment provided All Federal, State and Local Regulations, Ordinances and Permitting Processes shall be followed; **Pending** receipt of the final Mylar for recording purposes. Doyle seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

Chairman Fischbein informed the applicant that there is a 30 day Appeal Period as follows: ***Please Note: The Selectmen, any party to the action or any person directly affected has a right to appeal this decision within 30 days. To avoid lapsing of the approval, there should be substantial construction or liability within 2 years of the decision. See New Hampshire Revised Statutes Annotated, Chapter 677, available at the Ossipee Town Hall***, and the

APPLICANT'S RESPONSIBILITY: To complete the Subdivision/**Boundary Line Adjustment**, deeds must be legally drawn up, transferred and recorded at the Registry of Deed. A copy of the Recorded Deed shall be submitted to the Planning Board and the Town Assessor.

- **Case #26-04-SPRA**: Thomas & Stacey Daigle for 53 Main Street, Tax Map: 092 Lot: 127 is requesting a Site Plan Review Amendment to build an addition that will provide needed kitchen expansion, storage and provide a new service to the community of an Ice Cream Window.

Thomas Daigle explained that he is wanting to build a 19 ft. x 25 ft. addition to the existing business that will provide needed kitchen expansion, storage space and provide a new service of an Ice Cream Window to the community. There will be no other changes to the parking lot. The addition will be on the right side of the

building towards the Town Hall, it's within the required setback and has been discussed with the building inspector.

Board discussion included the location of the Ice Cream Window which will be on the parking lot side of the addition. Chairman Fischbein advised Mr. Daigle that if he is going to serve hard ice cream he will need to have grease traps because of the butter fats that will clog the pipes. Chairman Fischbein questioned Mr. Daigle in that will he have a grease trap and does his current septic system allow him the capacity for the ice cream shop. Thomas Daigle stated yes, on the grease trap and capacity is 100,000 gallon grease tank plus grease tanks for underneath the sinks on the floor. The state has been down to inspect and have had no issues.

Chairman Fischbein inquired of Jonathan Smith, ZEO, who confirmed he had no questions or concerns with this project.

A **Motion** by Fischbein to accept the application as complete for **Case #26-04-SPRA**: Thomas & Stacey Daigle for 53 Main Street, Tax Map: 092 Lot: 127. Stuart seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

Chairman Fischbein called for public input:

Dallas Emery thought this is a GREAT IDEA!!! Thomas Daigle noted they will be open from May to October, but specific dates are set.

A **Motion** by Fischbein for **Case #26-04-SPRA**: Thomas & Stacey Daigle for 53 Main Street, Tax Map: 092 Lot: 127 is Granted Approval for a Site Plan Review Amendment to build an addition to the existing business that will provide needed kitchen expansion, storage space and provide a new service of an Ice Cream Window to the community provided All Federal, State and Local Regulations, Ordinances and Permitting Processes shall be followed. Copeland seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

Chairman Fischbein informed the applicant that there is a 30 day Appeal Period as follows: ***Please Note: The Selectmen, any party to the action or any person directly affected has a right to appeal this decision within 30 days. To avoid lapsing of the approval, there should be substantial construction or liability within 2 years of the decision. See New Hampshire Revised Statutes Annotated, Chapter 677, available at the Ossipee Town Hall.***

Unsatisfied Conditions:

A **Motion** by Fischbein to remove **Case #26-01-SPRA**: Rockin' Fitness, LLC c/o Rowell Services - Rep. Agent: Elwood McLLarky for 2400 Route 16, Tax Map: 007 Lot: 011 the Conditional Site Plan Review Amendment. With receipt of the Fire Departments Letter of Approval from the list of Unsatisfied Conditions. Copeland seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

A **Motion** by Fischbein to remove **Case #26-02-SPRA**: Frederick Mauer c/o MH Enterprises, LLC for 674 Route 16 (formerly Ossipee House of Pizza) Tax Map: 259 Lot: 010 Conditional Site Plan Review Amendment for a change in use. With receipt of the Fire Departments Letter of Approval from the list of Unsatisfied Conditions. Doyle seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

A **Motion** by Fischbein to remove **Case #26-02-SPR**: Josh Kaake c/o Generational Development 485 Route 16. Owner: Laura Cammett c/o Laura Paige for 485 Route 16, Tax Map: 266 Lot: 015 is seeking Site Plan Review Minor. With receipt of the Deed of ownership, the Application completed & signed by owner and Pending: Fire Departments Letter of Approval from the list of Unsatisfied Conditions. Copeland seconded. No discussion. A unanimous vote in favor was taken by those in attendance. **Motion passed**.

Any Other Business Which May Come Before This Meeting:

Chairman Fischbein provided the following departing words: This is his last meeting and it has been awesome to serve with all of you. He has been on the Board for six years, he Loves this Town, he was born and raised here, his family has been here for several generations. His one wish is that people in this town would get involved. He joined the Board in 2020 because he felt that he had been wronged and that's why he joined the Board. He believes he's leaving the Board better than he found it. His biggest plan was revising the Master Plan, which Bruce Stuart worked so hard on. He put a lot of energy into it, found the consultants of Carol Ogilvie and Ivy Vann. He hopes this Board never forgets that the Master Plan, while is not a Law book, is and should be the vision for the decisions of the zoning ordinances that the Board decides to put into place. But that is not how this Board has driven for decades, probably since 1987, because that is the year they had to get the ordinances and Master Plan done and he had relatives on the ad hoc Board that formed the zoning. He hopes the Board utilizes the Master Plan when proposing and reviewing zoning ordinances because a lot of work went into the plan because it is the vision of the Town as the Board saw it over the past few years. He hopes to be back in the future and thanked everyone for also allowing him to be the Chairman as well.

Next Meeting: Tuesday, March 17, 2026 - 7:00 pm at the Freight House

Chairman Fischbein noted that even though some members will be changing, the new Board can still approve prior minutes. It has been a misconception that the Board must have the original members in order to approve the minutes from a meeting but that is a misconception.

- Tuesday - March 10, 2026: Town Election
- Wednesday – March 11, 2026: Annual Town Meeting

Adjournment:

A **Motion** by Fischbein to adjourn. Copeland seconded. No discussion. A unanimous vote was taken by a show of hands. **Motion passed**. **Meeting adjourned** at 8:00 PM.

Minutes approved by majority vote of the Board on – _____
Date

_____
Ash Fischbein,
Chairman

_____
Sharon "Sharie" Cohen,
Vice - Chairman